

APPLICATION FOR **TEXT AMENDMENT** UNDER THE REGULATIONS OF THE McLEAN COUNTY ZONING ORDINANCE

APPLICANT NAME: McLean County Land Use and Transportation Committee ADDRESS: 115 E Washington Street Bloomington, IL 61701 PHONE: - home: work:	FOR OFFICIAL USE ONLY CASE NO.: ZA - 25 - 01	
ATTORNEY NAME: ADDRESS: PHONE:- home: work:	FILING FEE \$ <u>0.00</u> RECEIPT NO. <u>N/A</u> PUB. COSTS \$ <u>110.65</u> RECEIPT NO. _____ HEARING DATE <u>10-7-25</u> HEARING TIME <u>7:00 p.m.</u> DECISION DATE <u>10-16-25</u>	RECEIVED SEPT 02 2025 ZONING FILE STAMP

Application is hereby made to amend Section (350-58 & 205-42)(350-26, 42 & 43) of the text of the McLean County Code as attached.

(Please attach amendment in exact language proposed.)

EXHIBIT A

Chapter 350: Zoning and Chapter 205 Zoning Fees

The McLean County Zoning Ordinance

(Additions are indicated by text and stricken material by ~~text~~)

Section 350-58 – Time limit Special Use Extension.

- A. Sunset. ~~Generally, a~~ A special use permit shall expire unless a construction permit is taken within 24 months to effectuate such specially permitted use or, if no construction permit is required, evidence of use is filed with the Director of Building and Zoning. The Zoning Board of Appeals may, upon written request of the permit holder filed prior to the expiration of the permit, extend the time for obtaining a construction permit, or filing evidence of commencement of the use, for an additional period of up to 12 months, as the Board deems appropriate based on the nature of the project and the circumstances justifying the extension.

Specific to permits issued for utility-scale commercial wind and solar energy projects: A special use permit shall expire unless a construction permit is taken within 36 months to effectuate such specially permitted use or, if no construction permit is required, evidence of use is filed with the Director of Building and Zoning. The Zoning Board of Appeals may, upon written request of the permit holder filed prior to the expiration of the permit, extend the time for obtaining a construction permit, or filing evidence of commencement of the use, for an additional period of up to 12 months, as the Board deems appropriate based on the nature of the project and the circumstances justifying the extension.

All requests for time limit extensions under this Section shall be made in writing and delivered to the office of the Director of Building and Zoning. The authority to grant such requests shall rest with the Zoning Board of Appeals, and such requests shall be considered at the regularly scheduled meeting of the Zoning Board of Appeals immediately following the date on which the request was filed except where prohibited by the requirements of the Open Meetings Act, in such event the request shall be considered at the second regular meeting subsequent to filing the request.

Section 205-42 Chapter 350, Zoning

Special use permits:

Less than 2 acres	\$400
At least 2 acres, but less than 15 acres	\$450
At least 15 acres, but less than 25 acres	\$550
At least 25 acres, but less than 80 acres	\$650
At least 80 acres and up to 100 acres	\$700
More than 100 acres	\$700, plus \$7/acre over 100 acres
<u>Special Use Extensions</u>	<u>\$400</u>

Section 350-26. Definitions.

Data Center - A facility used primarily to house computer servers, data storage systems, and related equipment for the purpose of processing, storing, and managing digital data. Data centers typically include associated infrastructure such as cooling systems, backup power supplies, and network connections, but do not generally provide direct retail or office services to the public.

Section 350-42 Use Table.

The use table provides a tabular summary of the land use types allowed within each base zoning district. The table is intended for reference and does not necessarily reflect all of the regulations that may apply to particular uses or districts. In the event of conflict between the use regulations listed within this article and the zoning district regulations of Article V, the text of the zoning district regulations shall prevail.

- A. Permitted (by right). Uses identified in a zoning district column of the Use Table with a "P" are "permitted by right" and shall be permitted in such zoning district. Permitted uses shall also be subject to the standards and regulations as may be indicated in the "Use Standards" column and all other requirements of this chapter.
- B. Special uses. Uses identified in a zoning district column of the Use Table with an "S" are "special uses" and shall be permitted in such zoning district if reviewed and approved in accordance with the standards of Article VIII. Special uses shall be subject to the standards and regulations as may be indicated in the "Use Standards" column and all other requirements of this chapter.
- C. Not permitted. Uses not identified in a zoning district column of the Use Table as permitted by right or by special use are not allowed in such zoning district unless otherwise expressly permitted by other regulations of this chapter.
- D. Use standards. A letter in the "Use Standards" column of the Use Table refers to standards and regulations applicable to the particular use in one or more of the districts in which such use is allowed. The referenced standards appear as subsections in § 350-43 of this article.

ZONING DISTRICTS

Use Type	A	R-1	R-2	C	M-1	M-2	Use Standards
<u>Data Center</u>	<u>S</u>			<u>S</u>	<u>S</u>	<u>S</u>	<u>FFF</u>

350-43 Use Standards.

The use standards of this section shall apply to permitted uses, special uses and accessory uses as noted.

FFF Data Center. Shall comply with the noise limits established by the Illinois Pollution Control Board.